

General Terms and Conditions of Retail Banking Services

Nexus Bank S.A.

Effective from: April 1, 2026

Abstract

This document constitutes the legally binding General Terms and Conditions (hereinafter referred to as the "Terms") governing the relationship between Nexus Bank S.A. and its retail clients. It contains comprehensive information regarding account management, applicable interest rates, fee structures, foreign exchange procedures, and complaint resolution. Clients are strongly advised to review this document in its entirety prior to initiating any financial operations.

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1 General Provisions

1.1 Definitions

For the purposes of these Terms, the following definitions shall apply:

- **Bank:** Nexus Bank S.A., with its registered headquarters located in Warsaw, Poland, a licensed banking institution operating under the supervision of the Polish Financial Supervision Authority (KNF).
- **Client:** A natural person, aged 18 or older, possessing full legal capacity, who has entered into an Account Agreement with the Bank.
- **Account:** A payment or savings account maintained by the Bank on behalf of the Client, identified by a unique International Bank Account Number (IBAN).
- **Working Day:** Any day from Monday to Friday, excluding statutory public holidays in the Republic of Poland.
- **NBP:** The National Bank of Poland (Narodowy Bank Polski), acting as the central bank of the Republic of Poland.
- **ISO 4217:** The international standard delineating three-letter currency codes (e.g., USD, EUR, PLN, CHF).

1.2 Scope of Services

The Bank provides comprehensive retail banking services, including but not limited to: maintaining current accounts, providing savings and deposit accounts, issuing debit and credit cards, facilitating domestic and international wire transfers, and processing foreign currency exchanges.

1.3 System Availability

All financial operations and balance updates are processed and recorded in the Bank's core banking systems in real-time. The Bank guarantees 99.9% system uptime. Scheduled technical maintenance occurs exclusively on the first Sunday of every calendar month between 02:00 AM and 05:00 AM (Central European Time). During this window, access to mobile and internet banking may be temporarily suspended.

2 Types of Bank Accounts

The Bank offers several tiers of account products to accommodate the diverse financial needs of its retail Clients.

2.1 Standard Account

The Standard Account is the fundamental payment account designed for daily financial settlements.

- **Monthly Maintenance Fee:** 0.00 PLN, provided the Client ensures a minimum monthly incoming transfer volume of 1,500.00 PLN. If this condition is not met, a maintenance fee of 15.00 PLN is charged.

- **Target Audience:** Clients requiring basic payment services, direct debits, and standard debit card functionality.

2.2 Premium Account

The Premium Account is a specialized service tier for Clients maintaining substantial balances and requiring extended privileges.

- **Requirement:** The Client must maintain an average monthly balance of at least 15,000.00 PLN across all linked Nexus Bank accounts.
- **Benefits:** Dedicated relationship manager, complimentary multi-currency debit card, and free access to selected global airport lounges via the Priority Pass network.

2.3 Savings Plus Account

A dedicated account designed for accumulating financial surpluses while maintaining liquidity. Withdrawals from the Savings Plus Account to the Client's own Standard or Premium Account are executed instantly. The first withdrawal in a calendar month is free of charge; subsequent withdrawals are subject to fees as outlined in Section 5.

3 Interest Rates and Capitalization

3.1 Base Interest Rates

Funds deposited in savings accounts and term deposits are subject to interest accumulation. The Bank applies the following nominal annual interest rates (Gross):

- **Standard and Premium Accounts:** The balance held on these current accounts does not bear interest (0.00% per annum).
- **Savings Plus Account:** The Bank applies a tiered interest rate structure:
 - For balances up to and including 100,000.00 PLN: **5.50% per annum.**
 - For the portion of the balance exceeding 100,000.00 PLN: **3.00% per annum.**
- **Term Deposits (Fixed Rate):**
 - 3-Month Term Deposit: **4.00% per annum.**
 - 6-Month Term Deposit: **4.50% per annum.**
 - 12-Month Term Deposit: **5.00% per annum.**

3.2 Capitalization Rules

For the Savings Plus Account, interest is calculated daily based on the end-of-day balance and capitalized (added to the principal balance) on the last Working Day of each calendar month. For Term Deposits, interest is capitalized at the end of the contractual term.

3.3 Penalty Interest Rates

In the event that a Client incurs an unauthorized overdraft (negative balance) on any account, the Bank shall immediately begin accruing penalty interest. The penalty interest rate is strictly set at **12.00% per annum** of the overdue amount, calculated for each day the unauthorized debit balance persists.

4 Foreign Exchange and Currency Transactions

4.1 General Principles of Currency Conversion

Nexus Bank allows Clients to execute transactions in foreign currencies worldwide. To ensure absolute transparency and to eliminate hidden spreads, **Nexus Bank does not apply its own proprietary exchange rates.**

4.2 Integration with the National Bank of Poland (NBP)

For the conversion of any foreign currency to Polish Zloty (PLN) and vice versa, the Bank explicitly utilizes the **average exchange rates published by the National Bank of Poland (NBP).**

4.2.1 Algorithmic Processing and ISO 4217

The Bank's automated systems determine the exchange rate by querying the official NBP API in real-time. When a transaction requires conversion, the system identifies the target currency strictly by its three-letter code as defined by the **ISO 4217 standard** (for example: USD for US Dollar, EUR for Euro, GBP for British Pound, CHF for Swiss Franc).

4.2.2 Technical Execution (System Instructions)

For auditing and operational transparency, the Bank processes currency lookups utilizing the following methodology:

1. The system extracts the ISO 4217 `currency_code` from the transaction payload.
2. An HTTP GET request is dispatched to the NBP Table A average rates endpoint:
`http://api.nbp.pl/api/exchangerates/rates/A/{currency_code}?format=json`
3. **HTTP 200 (OK):** If the service returns a status code of 200, the Bank parses the JSON response to extract the exact mid-rate value. This exact value is then applied to the Client's transaction without any percentage-based markup or spread.
4. **Exception Handling:** If the NBP API returns an HTTP status code other than 200 (indicating service unavailability, rate not found, or server error), the Bank's system will immediately raise an internal exception: *"Invalid service status, specifically: [Status Code]"*. Under such circumstances, the transaction is temporarily suspended, and the Client's funds remain frozen until the NBP service is restored, ensuring no Client suffers from an inaccurate conversion rate.

4.3 Exchange Fees

Because the Bank does not profit from the exchange rate spread, a flat operational commission is applied to foreign transactions. This is detailed in Section 5.

5 Schedule of Fees and Commissions

The following standard fees apply to retail operations. All amounts are expressed in Polish Zloty (PLN).

5.1 Card Services

- **Debit Card Issuance:** 0.00 PLN.
- **Monthly Card Maintenance:** 10.00 PLN. This fee is completely waived if the Client executes a minimum of five (5) cashless card transactions (POS or online) within the billing month.

5.2 ATM Withdrawals

- **Nexus Bank ATMs (Domestic):** 0.00 PLN.
- **Other Domestic ATMs (Standard Account):** 5.00 PLN per withdrawal.
- **Other Domestic ATMs (Premium Account):** 0.00 PLN.
- **International ATMs:** 15.00 PLN per withdrawal + Foreign Exchange Commission (if applicable).

5.3 Transfers and Operations

- **Standard Domestic Transfer (Elixir):** 0.00 PLN via online/mobile banking.
- **Instant Transfer (Express Elixir):** 4.99 PLN per transaction.
- **Foreign Exchange Operational Commission:** A flat fee of **2.50 PLN** is applied to any transaction requiring a currency conversion query via the NBP API (as described in Section 4). This fee is appended to the final transaction settlement amount.
- **Subsequent Savings Plus Withdrawals:** The second and any further withdrawals from the Savings Plus account in a single calendar month incur a fee of 9.00 PLN per operation.

6 Electronic Banking and Security

6.1 Authentication

Access to Nexus Bank's electronic systems requires Strong Customer Authentication (SCA). Clients must log in using a unique Client Identifier (ID) and a strictly confidential password. All sensitive operations, including outgoing transfers, must be authorized via a secondary factor (SMS OTP or Mobile App Authorization).

6.2 Client Responsibilities

The Client is strictly prohibited from sharing login credentials or physical payment instruments with third parties. In the event of loss, theft, misappropriation, or unauthorized use of a payment card or mobile device containing the banking application, the Client must notify the Bank immediately via the 24/7 emergency hotline.

6.3 Liability for Unauthorized Transactions

Pursuant to the Payment Services Act, the Client's liability for unauthorized payment transactions executed prior to notifying the Bank is limited to the equivalent of 50 EUR. Following the notification, the Bank assumes full financial liability for any subsequent unauthorized operations.

7 Complaint Procedures

7.1 Filing a Complaint

Clients possess the right to file formal complaints if they identify irregularities in the functioning of their Account, discrepancies in interest calculations, or unauthorized transactions. Complaints may be submitted:

- Electronically, via the secure messaging module in the internet banking portal.
- Telephonically, by contacting the dedicated Customer Support Center.
- In writing, mailed to the Bank's registered correspondence address.

7.2 Resolution Timeframes

The Bank treats all complaints with the utmost priority. Complaints pertaining directly to payment services and transactions will be resolved, and a formal response provided to the Client, no later than **15 Working Days** from the date of receipt. In highly complex cases, this period may be extended to 35 Working Days, provided the Client is informed of the delay prior to the expiration of the initial 15-day period.

7.3 Appeals

If the Client is dissatisfied with the Bank's proposed resolution, they maintain the right to appeal the decision to the Financial Ombudsman (Rzecznik Finansowy) of the Republic of Poland or to seek redress through common courts of jurisdiction.

8 Final Provisions

8.1 Amendments to the Terms

The Bank reserves the right to amend these Terms, the Interest Rates table, and the Schedule of Fees and Commissions. The Bank shall notify the Client of any proposed changes via a durable medium (including electronic banking notifications) at least two (2) months prior to their proposed date of application. If the Client does not object to the changes before the proposed effective date, they are deemed to have accepted them.

8.2 Governing Law

Any matters not explicitly regulated within these General Terms and Conditions shall be governed by the applicable provisions of the Polish Banking Law Act, the Payment Services Act, and the Polish Civil Code.

Document digitally signed and verified by the Management Board of Nexus Bank S.A.